DIVISION BENCH **ITEM NO. 2**

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA (CAA) No.01/ALD/2023

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 8th May, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**RAJDARBAR HERITAGE VENTURE LTD WITH RAJDARBAR INFOTECH PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT 2013**

COUNSEL APPEARED THROUGH PHYSICAL HEARING:

Sh. Siddhant Surya, Adv. : *For the Applicant*

ORDER

Ld. Counsel representing the applicant present through VC.

1. The present CA (CAA) No.01/ALD/2023 has been filed U/s 230/ 232 of the Companies Act, 2013 by the Applicant Company No.2/ Transferor Company No.2 and Transferee Company. Further, with respect to the Applicant Company No.1/ Transferor Company No.1, the Transfer Petition No.01/ALD/2023 has been allowed by the NCLT, Principal Bench, whereby CA (CAA) No.22/KB/2023 filed on behalf of Applicant Company No.1/ Transferor Company No.1 before the NCLT, Kolkata Bench, has been ordered to be transferred to NCLT, Allahabad Bench in terms of an order dated 27.02.2023. The same also therefore, has been listed along with CA (CAA) No.01/ALD/2023 and both the applications have been taken up together.

2. After arguing for some time, the Ld. Counsel representing the Applicant Companies seeks a short adjournment to place on record an amended/ modified chart giving details about the number of Equity Shareholders with respect to the

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Applicant Companies as well as the number of Unsecured Creditors and also provide in the chart the consents given by the respective Shareholders or the Unsecured Creditors.

3. The Ld. Counsel for the Applicant Companies also seeks a short adjournment to file an affidavit with regard to the Sectoral Regulators as the Applicant Company No.1 and the Applicant Company No.3 are engaged in the real estate business, and therefore, to explain as to why the RERA would not be a Sectoral Regulator as per the affidavit given at para no.20 of page 26, where the RERA is not included as one of the Sectoral Regulators.

4. Let the needful be done within a period of two weeks.

5. The matters to come up for further hearing on 24th May, 2023.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

8th May, 2023

Kavya Prakash Srivastava
(Stenographer)